

MASTER SERVICES AGREEMENT (ACME CLOUD SYSTEMS, INC. — HELIOS BIOTECH CORP.)

ACME CLOUD SYSTEMS INC. — HELIOS BIOTECH CORP.

Agreement ACME-HEL-MSA-2025 Effective 2025-04-01

This Master Services Agreement is entered into as of April 1, 2025 between Acme Cloud Systems, Inc. (“Acme”) and Helios Biotech Corp. (“Customer”).

2. Term and Fees

2.1 The initial term is thirty-six (36) months from the Effective Date.

2.2 Annual Fees are eighty thousand dollars (\$80,000), invoiced quarterly in advance. Invoices are due net forty-five (45) days from the invoice date.

8. Limitation of Liability

8.1 Except as stated in Section 8.2, each party’s aggregate liability arising out of or related to this Agreement shall not exceed one hundred fifty percent (150%) of the total Fees paid or payable by Customer in the twelve (12) months preceding the first event giving rise to the claim.

8.2 The limitation in Section 8.1 does not apply to a party’s gross negligence or willful misconduct, or to Customer’s obligation to pay Fees. Liability for those matters is unlimited.

8.3 Neither party is liable for indirect, incidental, special, consequential, or punitive damages.

12. Governing Law

12.1 This Agreement is governed by the laws of the State of Delaware, excluding its conflict-of-laws rules.

SIGNATURE · NAME · TITLE · DATE

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Corpus note:

Calibration document. Uses the same variable names as the Northwind agreement (liability cap, fees, 12-month lookback) with DIFFERENT numbers, but governs a different agreement. A correct detector must NOT report a conflict here.